

25STCV36803B 25STCV36803B

County: los-angeles

Division: Civil Law and Motion

Department: 415

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 29, 2026

CASE NUMBER

25STCV36803B

MOTION

Motion for Approval of Lis Pendens

MOVING PARTY

Plaintiff Jarett Cole

OPPOSING PARTY

None

MOTION

Plaintiff

Jarett Cole ("Plaintiff") filed this motion for judicial approval of a lis pendens Plaintiff proposes to file. Defendant has not filed an opposition.

The Court hereby admonishes Plaintiff for the filing of overly long papers in this action. Pursuant to California Rules of Court, rule 3.1113(d), Plaintiff's memorandum of points and authorities is limited to no more than 15 pages. Yet, Plaintiff's submission for this motion is more than two times the specified page limit. Plaintiff did not seek dispensation from this Court, pursuant to Rules of Court, rule 3.1113(e), for filing a memorandum in excess of the page limit. The Court advises Plaintiff if this persists, the Court will only consider submissions up to the page limit prescribed in the rules.

ANALYSIS

On request of a self-represented litigant, the Court may approve a lis pendens for filing. (Code Civ. Proc., § 405.21.) In determining whether to approve the lis pendens, the Court must "confirm that an action containing a real property claim . . . is pending," and determine that the lis pendens is "proper in form" (Real Property Law Section Comments on Code Civ. Proc., § 405.21.) For purposes of this statute, a "real property claim" is a cause of action in a pleading "which would, if meritorious, affect (a) title to, or the right to possession of specific real property, or (b) the use of an easement identified in the pleading" (Code Civ. Proc., § 405.4.)

Plaintiff's complaint asserts causes of action for tenant harassment, retaliation, breach of the covenant of quiet enjoyment, breach of the warranty of habitability, and intentional infliction of emotional distress. If Plaintiff prevails on these claims, the title and possession of the property at issue will not change. Instead, Plaintiff would obtain damages.

Accordingly, the motion for judicial approval of the lis pendens is denied.

Plaintiff is to give notice of the Court's ruling and to file proof of service of same.